

13. S-CV-0053949 McGettigan, Deborah v. John Mourier Construction

Moving Party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Cross-Defendants John Mourier Construction, Inc. and SV 218, LLC's Motion for Judgment on the Pleadings as to the Cross-Complaint filed by Pacific Coast Supply, LLC and AlCal Specialty Contracting, Inc.

Cross-defendants John Mourier Construction, Inc. and SV 218, LLC move for judgment on the pleadings as to the cross-complaint filed by Pacific Coast Supply, LLC and AlCal Specialty Contracting, Inc. Cross-complainants oppose the motion and request to file an amended cross-complaint.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Cross-defendants brings the motion on the basis the cross-complaint fails to state a cause of action because it is ambiguous and unintelligible as defined in California Civil Procedure § 430.10(f). (Mot. J. Pleadings at 4.)

In response, cross-complainants concede their "hastily drafted" cross-complaint needs amending and requests leave under C.C.P. 473(a)(1) to file an amended cross-complaint.

Accordingly, cross-defendants' motion is granted, with leave for cross-complainants to amend the cross-complaint. (Code Civ. Proc., §§ 473, (a)(1), 576.) Cross-complainants shall file and serve an amended cross-complaint **on or before May 8, 2026**.

14. S-CV-0054573 Casey, Michael v. Casey, Donna Sue Eggleston

Motion for Attorneys' Fees

Defendant moves for an award of attorneys' fees and costs in the amount of \$26,323.21 (fees of \$19,564.56 for litigating a special motion to strike and costs of \$143.83 for filing that special motion to strike; and fees of \$6,545 for filing this motion and costs of \$69.82